

Inter-Ins. Bureau v. Superior Court (1990) 50 Cal.3d 658, 664.) As a result, courts have specifically noted that *Neary* does not always apply, because “[w]here the rights of the public are implicated, the additional safeguard of judicial review, though more cumbersome to the settlement process, serves a salutatory purpose.” (*Consumer Advocacy Group, Inc. v. Kintetsu Enterprises of America* (2006) 141 Cal.App.4th 48, 63.)

Attorney fees

Plaintiff seeks one-third of the total settlement amount as fees, relying on the “common fund” theory. Even a proper common fund-based fee award, however, should be reviewed through a lodestar cross-check. In *Lafitte v. Robert Half International* (2016) 1 Cal.5th 480, 503, the Supreme Court endorsed the use of a lodestar cross-check to determine whether the percentage allocated is reasonable. It stated: “If the multiplier calculated by means of a lodestar cross-check is extraordinarily high or low, the trial court should consider whether the percentage used should be adjusted so as to bring the imputed multiplier within a justifiable range, but the court is not necessarily required to make such an adjustment.” (*Id.*, at 505.) Following typical practice, however, the fee award will not be considered at this time, but only as part of final approval.

Similarly, litigation costs and the requested representative payment of \$5,000 for each plaintiff will be reviewed at time of final approval. Criteria for evaluation of representative payment requests are discussed in *Clark v. American Residential Services LLC* (2009) 175 Cal.App.4th 785, 804-807.

Ruling

1. The Court finds that this settlement is sufficiently fair, reasonable, and adequate to justify *preliminary* approval. The Motion is **granted**. No appearance is required at the hearing on June 17, 2026.
2. Plaintiff’s Counsel is directed to prepare an order reflecting this ruling, the other findings in the previously submitted proposed order, and to obtain a hearing date for the motion for final approval from the Department clerk. Other dates in the scheduled notice process should track as appropriate to the hearing date. The ultimate judgment must provide for a compliance hearing after the settlement has been completely implemented.
3. Plaintiffs’ counsel is to submit a compliance statement one week before the compliance hearing date, which shall include the matters necessary to comply with Code of Civil Procedure section 384(b). Notwithstanding any contrary provision in the settlement agreement, 5% of the attorney’s fees are to be withheld by the administrator until released by the Court after review of the compliance statement. The Court may issue a release through an unreported minute order without hearing on the compliance statement.

11. 9:00 AM CASE NUMBER: C25-00609

CASE NAME: VICKI RUDD VS. THERESA CALLEJAS

*HEARING ON MOTION IN RE: VACATE DISMISSAL ENTERED, ENFORCE SETTLEMENT AGREEMENT, AND SANCTIONS FOR COUNSEL

FILED BY: CALLEJAS, THERESA

TENTATIVE RULING:

Defendants Theresa Callejas, Rosalinda Callejas, and Michelle Karakas ("Defendants") bring the instant motion to vacate dismissal, enforce settlement, and sanction counsel pursuant to Code of Civil Procedure ("CCP") section 128.7 (the "Motion").

Defendants argue that this case (C25-00609) is barred by a release executed in a settlement agreement for Contra Costa Superior Court case number C18-01501. Defendants ask the Court to vacate the dismissal in case number C18-01501, reinstate that case, and then enforce the settlement agreement and award Defendants fees and costs in connection with the defense of the instant action. Defendants also ask for the Court to award them sanctions pursuant to CCP section 128.7.

For the reasons discussed below, Defendants' Motion is **DENIED**.

Request for Judicial Notice:

Defendants request the Court to take judicial notice of: **(1)** all pleadings filed in *Vicki Rudd v. Theresa Callejas as an Individual and as Trustee of the Theresa H. Callejas Revocable Trust, et al.*, Contra Costa County Superior Court case no. C18-01501 (the "2018 Action"); **(2)** the Settlement Agreement and Release of All Claims signed by Plaintiff Vicki Rudd and Defendant Theresa Callejas on 2/19/2019; **(3)** all pleadings filed in *Vicki Rudd v. Theresa Callejas as an Individual and as Trustee of the Theresa H. Callejas Revocable Trust, et al.*, Contra Costa County Superior Court case no. C25-00609; and **(4)** all pleadings filed in *Michele Karakas v. Vicki Rudd, et al.*, Contra Costa County Superior Court, case no. MS25-0791.

Defendants request judicial notice of the above-referenced documents via Evidence Code section 452, subdivisions (d) and (h). (Request for Judicial Notice, p. 1.) The Court GRANTS Defendants' request for judicial notice as to request numbers (1), (3), and (4). However, the Court DENIES the request for judicial notice as to request number (2), the settlement agreement from the 2018 Action. The settlement agreement is not a record of any court as it was never filed in the 2018 Action, so the Court cannot grant the request for judicial notice as to the settlement agreement under subdivision (d) of Evidence Code section 452. Further, the Court cannot grant the request for judicial notice as to the settlement agreement under subdivision (h) because a non-public settlement agreement between two private parties is not "capable of immediate and accurate determination by resort to sources of reasonably indisputable accuracy." (Evid. Code, § 452, subd. (h).)

Background: Facts Alleged in Complaint

As per the allegations in the Complaint, Plaintiff is a tenant living on a property located in Pleasant Hill (the "Property"). (Complaint, ¶ 1.) Defendants owned, controlled, or managed the Property while Plaintiff resided there and are her Landlords. (*Id.* at ¶¶ 2, 6.) Plaintiff entered into a rental agreement with Defendants around July 15, 2008, regarding the Property. (*Id.* at ¶ 7.) Rent was to be

\$2,200 per month but was increased to \$2,500 per month. (*Ibid.*) Plaintiff asserts that substantial habitability defects existed with the Property that rendered the Property unfit for human occupancy. (*Id.* at ¶ 9.) These defects include but are not limited to: a non-working heater; rodent infestation; defective plumbing; defective electrical wiring; mold and mildew; illegal structure connected to the roof overhang, and severe structural disrepair. (*Id.* at ¶ 10.) At the time the lease was executed, Defendants were aware of these conditions and others that would come into existence shortly after the beginning of the tenancy. (*Id.* at ¶ 11.) Defendants concealed these facts from Plaintiff at the time of entering into the rental agreement. (*Ibid.*) Plaintiff moved onto the Property on August 1, 2008. (*Id.* at ¶ 12.)

Shortly after moving in, Plaintiff discovered mold, bathroom defects, appliance malfunctions, rodent infestation, non-functional bathroom window, mold in cabinets, fire hazards (an outlet in a bedroom caught fire); structural hazards (ceiling collapsed onto Plaintiff's head), multiple water leaks from plumbing fixtures, and more. (Complaint, ¶¶ 12-13.) Plaintiff filed a lawsuit in 2018 to address these and other issues. (*Id.* at ¶ 14.) Also in 2018, the heater in the living room was red tagged for leaking carbon monoxide onto the Property. (*Id.* at ¶ 15.) Since the heater was replaced, it has not functioned properly. (*Ibid.*) In 2019, Plaintiff and Defendants settled the 2018 Lawsuit and Defendants agreed to remediate the mold, rodent infestations, and structural issues. (*Id.* at ¶ 16.) Despite this, Defendants have failed to do so which has led to the issues continuing to negatively affect Plaintiff. (*Ibid.*) These include electrical failures in 2023 and rodent infestations in 2024. (*Id.* at ¶¶ 17-18.) Plaintiff notified Defendants but rather than fix the issues they retaliated against Plaintiff for reporting the issues. (*Id.* at ¶¶ 18-19.)

In June 2024, Defendants served a 60-day notice on Plaintiff. (Complaint, ¶ 20.) In September 2024, Defendants filed an eviction action against Plaintiff. (*Id.* at ¶ 22.) Defendants dismissed the unlawful detainer action on the day of trial. (*Id.* at ¶ 22.) Plaintiff then sent Defendants lists of numerous safety hazards in December 2024 and February 2025. (*Id.* at ¶ 23.) In January 2025, Defendants notified Plaintiff that the rent was increasing from \$2,500 per month to \$4,000 per month. (*Id.* at ¶ 24.) Plaintiff also complains of Defendants not following 24-hour notice of entry requirements and of engaging in a pattern of harassment, intimidation and retaliation. (*Id.* at ¶¶ 28, 33.)

The Complaint in this matter was filed on March 4, 2025, and asserts claims for: (1) breach of the implied warranty of habitability (Civil Code sections 1941 et seq.); (2) breach of quiet enjoyment (Civil Code section 1927); (3) contractual breach of the implied warranty of habitability (Civil Code section 1941); (4) breach of contract; (5) retaliation; (6) violation of Civil Code section 789.3; (7) unfair business practices (Bus. & Prof. Code, § 17200 et seq.); and (8) negligence.

There was an earlier case between Plaintiff and defendant Theresa Callejas, regarding the same Property and similar issues (the 2018 Action), that was dismissed with prejudice on April 29, 2019.

Discussion

Defendants argue that the Court should vacate the dismissal of the 2018 Action and enforce the 2019 settlement agreement pursuant to CCP section 664.6. (MPA ISO Motion, pp. 1-4.) Defendants argue that a declaration of Plaintiff from case number MS25-0791, provides all the facts necessary to grant Defendants' instant Motion. (*Id.* at pp. 4-10.) Defendants assert that an indemnity provision from the

2019 settlement agreement supports their request for attorney fees. (*Id.* at pp. 10-11.) Finally, Defendants argue that they are entitled to sanctions pursuant to CCP section 128.7, and request that the Court set a hearing to determine the amount of sanctions. (*Id.* at p. 11.)

Plaintiff argues that the Court should deny the Motion for failing to conform to California Rule of Court, rule 3.1112(a). (Opposition, pp. 11-12.) Plaintiff points out that the release from the 2019 settlement agreement does not and cannot release Defendants from liability for misconduct that occurred subsequent to the release. (*Id.* at pp. 12-13.) Plaintiff also asserts that there is no proper legal mechanism to vacate the dismissal from the 2018 Action because it is not void and there is no evidence of extrinsic fraud. (*Id.* at pp. 13-15.) Plaintiff addresses the CCP § 128.7 claim by arguing that Defendant did not comply with the statutory requirements and thus the Court should deny those sanctions. (*Id.* at pp. 15-16.) Additionally, Plaintiff argues that none of their claims are time-barred, the release does not require Plaintiff to indemnify Defendants for this matter, and that Defendants' Motion itself violates CCP § 128.7. (*Id.* at pp. 16-21.) Finally, Plaintiff argues that there was no CCP § 664.6 motion filed in the 2018 Action and the agreement does not show that it was filed with the court or signed by the judge. (*Id.* at pp. 19-20.)

On reply, Defendants argue that they complied with CRC rule 3.1112(a) and that the Motion is not a CCP § 128.7 motion, although it does seek remedies available under CCP § 128.7. (Reply, pp. 3-4.) They also assert that Plaintiff's admissions show that the settlement agreement applies and should be enforced to prevent Defendants from incurring additional legal fees in this frivolous action. (*Id.* at pp. 5-6.) Defendants point out that Plaintiff cited an inapplicable version of CCP § 667.6, as it was amended and the new version became operative in 2025 such that the newer statute is not applicable to the Court's retention of jurisdiction in relation to the 2018 Action. (*Id.* at pp. 6-7.) Finally, Defendants request that a hearing be set on the issue of § 128.7 sanctions. (*Id.* at pp. 2-3.)

CCP § 664.6 Request to Vacate Dismissal and Enforce Settlement Agreement

Defendants ask this Court to vacate the dismissal of the 2018 Action and enforce the 2019 settlement agreement pursuant to CCP section 664.6. (MPA ISO Motion, pp. 1-4.) The requirements for a court to retain jurisdiction over a matter subsequent to dismissal are laid out in Defendants' MPA ISO the Motion. "A request for the trial court to retain jurisdiction under CCP § 664.6 must conform to the same three requirements which the Legislature and the courts have deemed necessary for § 664.6 enforcement of the settlement itself: the request must be made (1) during the pendency of the case, not after the case has been dismissed in its entirety. . ." (MPA ISO Motion, p. 5:17-21, citing *Mesa RHF Partners. L.P. v. City of Los Angeles* (2019) 33 Cal.App.5th 913, 917.) Here, in reviewing the 2018 Action's docket, as per Defendant's request for judicial notice, the Court has determined that there was never a request made in the 2018 Action for the court to retain jurisdiction. There was a case management conference statement filed on December 14, 2018, which stated that there was a mediation in that case scheduled for February 19, 2019. Then, there was a notice of conditional settlement filed on March 6, 2019, that stated that a request for dismissal would be filed no later than May 1, 2019. Nothing was attached to the notice of conditional settlement, it was just a single CM-200 form that was filed. Then, on April 29, 2019, a request for dismissal was filed that dismissed the case with prejudice, and again, there was nothing attached to the document that was filed—it was just a standalone CIV-110 form.

Despite the parties possibly agreeing between themselves in the settlement agreement that the Court would retain jurisdiction, there was never a request made during the pendency of the 2018 Action for the Court to retain jurisdiction. At the time the parties here entered into their settlement agreement and dismissed the 2018 Action, CCP section 664.6 authorized the Court to retain jurisdiction to enforce a settlement, “if requested by the parties.” “‘Because of its summary nature, strict compliance with the requirements of section 664.6 is prerequisite to invoking the power of the court to impose a settlement agreement.’ [Citation.]” (*Mesa, supra*, 33 Cal.App.5th at p. 917.)

In *Mesa*, the Court of Appeal rejected the argument that the parties’ signed settlement agreement was sufficient to retain the trial court’s jurisdiction because the agreement was never presented to the court, and the court was never asked to retain jurisdiction, before the case was dismissed. (*Mesa, supra*, 33 Cal.App.5th at p. 918.) The fact the parties had a signed agreement for the court to retain jurisdiction alone was not sufficient because “subject matter jurisdiction ‘is not subject to forfeiture or waiver’ and cannot be conferred by ‘estoppel, consent, . . . or agreement.’” (*Id.* at p. 918, fn. 3.)

Here, Plaintiff dismissed the action with prejudice on April 29, 2019, and there is nothing in the record to show the parties requested the Court to retain jurisdiction, or that the Court otherwise retained jurisdiction in any way. This lack of jurisdiction does not render any settlement agreement the parties entered into unenforceable. Rather, it simply means it may not be enforced through the summary procedures authorized by CCP § 664.6.

Defendants’ Motion to vacate the dismissal in the 2018 Action and enforce the settlement agreement is thus DENIED WITHOUT PREJUDICE to Defendants invoking some other procedure to enforce the settlement agreement.

128.7 Sanctions

Defendants ask the Court to set a hearing on the issue of CCP § 128.7 sanctions as to Plaintiff and her pursuit of the instant claims, due to them being barred either by the release from the settlement of the 2018 Action or the statute of limitations. (Reply, pp. 7-11.) However, according to CCP § 128.7, subdivision (c)(1), “A motion for sanctions under this section shall be made separately from other motions or requests and shall describe the specific conduct alleged to violate subdivision (b).” Here, Defendants’ motion to sanction counsel pursuant to CCP § 128.7, is included as a portion of a larger, “MOTION TO VACATE DISMISSAL ENTERED, ENFORCE SETTLEMENT AGREEMENT, AND SANCTION COUNSEL PURSUANT TO CCP § 128.7.” (MPA ISO Motion, p. 1.)

Further, regarding CCP § 128.7 sanctions, the “[n]otice of motion . . . shall not be filed with or presented to the court unless, within 21 days **after service of the motion**, or any other period as the court may prescribe, the challenged paper, claim, defense, contention, allegation, or denial is not withdrawn or appropriately corrected.” Here, the Declaration of Karyne T. Ghantous ISO the Motion, does not reflect that Defendants served a copy of the Motion on Plaintiff, but rather a 2-page letter that was to “serve as [the] 21-Day Notice of Safe Harbor . . .” (Ghantous Decl. ISO Motion, ¶ 3, Exh. 1.) This letter is not sufficient to trigger the 21-day safe harbor period, as the statute makes clear, a notice of motion pursuant to CCP § 128.7 shall not be filed any sooner than 21 days after service of the motion.

Thus, the Court cannot entertain the portion of the Motion that is seeking CCP § 128.7 remedies.

Defendants' motion to sanction Plaintiff's counsel via CCP § 128.7 is **DENIED**.

Ruling

Based on the above analysis, Defendants' Motion to vacate the dismissal in the 2018 Action and enforce the settlement agreement is **DENIED WITHOUT PREJUDICE** to Defendants invoking some other procedure to enforce the settlement agreement. Defendants' motion to sanction Plaintiff's counsel via CCP § 128.7 is **DENIED**.

12. 9:00 AM CASE NUMBER: C25-01588

CASE NAME: MUKESH ADVANI VS. NIARE FEASTER

HEARING IN RE: EX PARTE APPLICATION FOR LEAVE TO AMEND THE COMPLAINT TO SUBSTITUTE TRUE NAME FOR DOE DEFENDANT 1 AND 2

FILED BY:

TENTATIVE RULING:

Summary

Plaintiff Mukesh Advani, individually, as successor in interest to Mohini Advani, and as Personal Representative and Special Administrator to the Estate of Mohini Advani (collectively, "Plaintiff") filed an *ex parte* application on February 9, 2026 for leave to amend the complaint to substitute true name for Doe Defendant 1 (Healthflex Hospice) and for Doe Defendant 2 (Healthflex Home Health Services). The hearing on the application was set for hearing on June 17, 2026. No timely opposition was filed with the Court.

The application for leave to amend the complaint is **granted**. Plaintiff shall file an amended complaint no later than 10 days from the date of this order. No appearance is required at the hearing on June 17, 2026.

13. 9:00 AM CASE NUMBER: C25-01788

CASE NAME: JOSEPH MURPHY VS. LIBERTY UNION HIGH SCHOOL DISTRICT

***HEARING ON MOTION IN RE: APPLICATION/MOTION TO APPEAR AS COUNSEL PRO HAC VICE**

FILED RE: JOSEPH J. ZONIES, ESQ.

FILED BY: MURPHY, JOSEPH

TENTATIVE RULING:

Summary

Plaintiff Joseph Murphy ("Plaintiff") filed a Notice of Hearing and Motion for Joseph J. Zonies of Zonies Law LLX, Denver, CO to be admitted as Counsel *Pro Hac Vice*. The Motion is **granted**. No appearance is required at the hearing on June 17, 2026.

Background

On February 11, 2026, Plaintiff filed Notice of Hearing, through Counsel Jennifer R. Liakos, on Verified Application for Admission of Joseph J. Zonies, Esq. to the Bar of this Court *Pro Hac Vice* ("Motion"). The Motion was supported by the Verified Application of Joseph J. Zonies. The Proof of Service shows that service was accomplished via U.S. Mail February 11, 2026, and included the State Bar of California. The Court did not receive a timely opposition from Defendant Liberty Union High School